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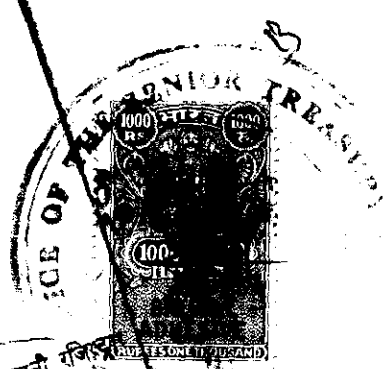
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कम्पनी सं. 101262
को. जिल्हा / रिकार्ड फाइल क्रमांक 18/2/96
Co. No. 101262
Registered File No. 18/2/96
Date of Despatch



THE COMPANIES ACT, 1956
COMPANY LIMITED BY SHARES
ARTICLES OF ASSOCIATION
OF
BALBIR HOLDINGS PRIVATE LIMITED

1. Subject as hereinafter otherwise provided the regulations contained in Table 'A' in the Schedule 1 to the Companies Act, 1956 shall apply to this Company so far as they are applicable to private Company except so far as they have been modified or expressly modified by what is contained Articles hereinafter mentioned as altered or amended from time to time.

INTERPRETATION

2. In the interpretation of these Articles, the following expressions shall have the following meaning unless repugnant to the subject or context :

- (i) "The Company" or "This Company" means.
BALBIR HOLDINGS PRIVATE LIMITED
- (ii) "The Act" or "Thai said Act" means the Companies Act, 1956.
- (iii) 'Seal' means the Common Seal of the Company.

3. The Company is a Private Company and accordingly the following provisions shall have effect :

ADDL. Registrar of Companies
Maharashtra, Mumbai.

- (a) The number of members of this Company (Exclusive of persons who are in the employment of the Company and persons who, having been formerly in the employment of the Company were members of the Company while in that employment and hence continued to be members after the employment ceased) shall not exceed fifty. But where two or more persons hold one or more shares in the Company jointly they shall for the purpose of this paragraph be treated as a single member.
- (b) Any invitation to the public to subscribe to any shares in or debentures of the Company is hereby expressly prohibited and
- (c) The right of transfer of shares is restricted as hereinafter provided.

SHARE CAPITAL

The Authorised Share Capital of the Company is Rs. 1.00.000 (Rupees One Lakhs Only) divided in to 10.000 (Ten Thousand) Equity Shares of Rs. 10/- each.

With powers to increase and/or reduce the capital of her Company and to divide the shares in the capital for the time being into two classes and attach thereto respectively such preferential, qualified or special rights, privileges or conditions in such manner as may be for the time being be provided by the regulation of the Company.

5. The shares of the Company shall be under the control and discretion of the Directors who may divide the shares into several classes and subject to the provisions herein contained may allot, transfer or otherwise dispose of the same to such person or persons and for such consideration upon such terms and; conditions at such time as the Directors may in their absolute discretion think fit and such shares may be issued at per or at premium or at a discount.

6. Subject to the provisions of Sections 80 of the Act, any preference shares may, with the sanction of an ordinary resolution, be issued on the terms that they are, or at the option of the Company are, liable to be redeemed on such terms and in such manner as the Company, before the issue of the shares may, be special resolution determine.

7. No person shall be recognised by the Company as holding any share upon trust and the Company shall not be bound or be compelled to recognise any equitable, contingent, future or partial interest in any shares, or any interest in any fractional part of shares, (except only as by these regulations or by law otherwise expressly provided) any other right in respect of any share except an absolute right to the entirely thereof in the registered holder.

GENERAL AUTHORITY

Wherever if the said Act it has been provided that the Company shall have any right, privilege or authority or that the Company could carry out any transaction only if the Company is so authorised by its Articles, then and in that case these regulations hereby authorise and empower the company to have such right, privilege or authority and to carry such transactions as has been permitted by the Act without there being any specific regulations in that behalf herein provided. As an illustration of such rights, privileges, authorities and transactions, the following are set out with the relevant section:-

Section 76 to pay commission on issue of Share and Debentures.

Section 80 to issue Redeemable Preference Shares.

Section 92 to accept unpaid share capital although not called up.

Section 93 to pay dividend in proportion to the amount paid up.

Section 94 to alter the share capital of the Company.

Section 100 to reduce the share capital of the Company.

Section 106 to alter right of holders and special class to shares.

Section 208 to pay interest out of capital in certain cases.

Section 265 to adopt proportional representation for the appointment of Directors.

Section 300 to have disinterested quorum.

Section 313 to authorise the Board to appoint alternate Directors etc.

SHARE CERTIFICATE

Subject to the provisions of Companies (issue of Share Certificate) Rules, 1960, or any statutory modification or reenactment thereof, the certificate of title of shares and duplicate thereof when necessary shall be issued under the seal of the Company which shall be affixed in the presence of and signed by:

1. The directors of the Company or persons on behalf of the Directors under a duly Registered power of Attorney; and
2. The Secretary or some other person appointed by the directors for the purposes, provided that if the composition of the Board permits of it, at least one of the aforesaid two Directors shall be a person other than a managing or wholetime Director.

The Company shall have a first and paramount lien upon all shares (not being fully paid) registered in the name of any member, either alone or jointly with any other person and upon the proceeds of sale thereof, for the debts, liabilities and engagements, whether solely or jointly with any other person to

or with the Company, whether the period for the payment fulfillment or discharge thereof shall have actually arrived or not, and such lien shall extend to all dividends from time to time provided that the Board of Directors may be at time declare shares to be exempt wholly or partly, from the provisions of this Article.

TRANSFER OF SHARES

11. Save as hereby otherwise provided, no share be transferred to any person who is not a member of the Company, so long as any member or any member of the family of the member or any person selected by the Board of Directors as one desirable in the interest of the Company to be admitted to the membership is willing to purchase the same at the fair value to be determined in the manner hereinafter provided.
12. Except as hereinafter provided no shares in the Company shall be transferred unless and until the right of preemption hereinafter conferred shall have been exhausted.
13. In order to ascertain whether any member is willing to purchase a share, the person proposing to transfer the same (hereinafter called the retiring member) shall give a notice to Board of Directors that he desires to sell the same. Every sale notice shall specify in distinctive numbers of the shares which the retiring member offers for sale and the sum he fixes as fair value and shall constitute the Board of Directors his agent for the sale of the shares to member of person selected by the Board of Directors at the price as fixed or at the option of the purchaser or at the fair value to be fixed in accordance with these Articles. No sale notice shall be withdrawn except with the sanction of the Board of Directors.
14. The Board of Directors shall within 60 days after the service of the sale notice find a member willing to purchase the shares comprised therein (hereinafter called the "purchasing member") and shall give notice thereof to the retiring member. The retiring member shall be bound upon payment of the price by the purchasing member or members, to complete the purchase within 14 days from the service of such last mentioned notice.
15. In case any difference arises between the retiring member and the purchasing member as to the fair value of the share, the value shall be that which the Auditors of the Company, or any arbitrator or arbitrators mutually appointed by both the retiring and the purchasing member and approved by the Board of Directors shall certify in writing to be the fair value of the shares.
16. The Directors may in their absolute and uncontrolled discretion and without assigning any reason, decline to register or acknowledge any transfer of shares and in particular may so decline in respect of shares upon which the Company has lien or whist any member executing the transfer either alone or jointly with any other person or persons, is indebted to the Company or any account whatsoever or whist any moneys in respect of the shares desired to be transferred or others remain unpaid or unless the transferee is approved by the Directors and such refusal shall not be affected by the fact that the proposed transferee is already a member. If the Directors refuse to register

the transfer of any shares they shall within two months after the date on which the transfer was lodged with the Company send to the transferee and to the transferee, notice of refusal.

PROCEEDINGS OF THE GENERAL MEETING

- (a) Not less than seven days notice specifying the place, the day, and the hour of general meeting (whether annual extraordinary) and in the case of special business the General nature of such business, shall be given to the members in the manner in the manner hereinafter mentioned or in such other manner as may be prescribed by the Company in general meeting but accidental omission to give such notice to or, non receipt of such notice by any member shall not invalidate the proceedings of the general meeting. A general meeting may with the consent of all the members be called at a shorter notice and in such manner as the members think fit.
 - (b) Provisions of Sections 173 to 186 shall not apply to this Company.
 - (c) At any general meeting every question shall be decided by a show of hands. In case of equity of votes at any general meeting on a show of hands, the Chairman shall be entitled to a second or casting vote.
18. No business shall be transacted at any General Meeting unless quorum of members is present. Two members present in person shall be a quorum for general meeting.

BOARD OF DIRECTORS

19. Subject to the provisions of Section 52 of the Companies Act, 1956, and unless and until otherwise determined by the Company in General Meeting, the number of Directors shall not be less than two and not more than twelve including the Managing Director or nominated Directors.
20. (a) The first directors of the Company shall be:
- 1. **BALBIR SINGH RENU**
 - 2. **TEJINDER SINGH RENU**
21. It shall not be necessary for a Directory to hold any share in the Company.
22. The Board shall have power at any time and from time to time to appoint any other qualified person to be an additional Director, but so that the total number of Directors shall not at any exceed the maximum fixed under Articles. Any such additional Director shall hold office only up to the date of the next Annual General Meeting but shall be eligible for re-appointment as a Director.
23. The Board shall have power at any time and from time to time appoint any other qualified person to be a Director to fill up a casual vacancy. Any person so appointed shall hold office only upto the date upto which the Director in whose place he is appointed would hold office if it has not been vacated by him.

24. (1) Subject to the provisions of the Act, a Managing Director or a Director who is in the whole-time employment of the Company or a part-time director may be paid remuneration either by way of the Company or partly by one way and partly by the other.
- (2) Subject to the provision of the Act, a Director who is neither in the whole-time employment not a Managing Director may be paid remuneration either.
- (3) The fee payable to Director (including Managing or whole-time Director, if any, for attending meeting of the Board of committee thereof shall be Rs.250/- or such other sum as the Board may from time determine.
- (4) The Board may allow and pay to any Director, who is not a bona fide resident of the place where the meetings of the Board are ordinarily held and who shall come to such place for the purpose of attending any meeting such sum as the Board may consider fair compensation for travelling, boarding, lodging and other expenses in addition to his fees for attending such meeting as above specified, and if any Director be called upon to go or reside out of the ordinary place of his residence on the Company's business, he shall be entitled to be re-paid and reimbursed any travelling or other expenses incurred in connection with the business of the Company.

POWERS AND DUTIES OF DIRECTORS

25. The management and control of the Company shall be vested in the Directors who may exercised or done by the Company and are not by the Act expressly directed or required to be exercised or done by the Company in General Meeting by subject nevertheless to the provisions of the Act and to any regulations from time to time made by the Company in General Meeting provided that no regulations so made shall invalidate any prior act of the Director that would have been valid if such regulation had not been made.
26. Every Director who is in any way, whether directly or indirectly concerned or interested in a contract or arrangement shall disclose the nature of his concern or interest at a meeting of the Board, such disclosure should be made at the first meeting of the Board held after the Directors become concerned or interested or at the meeting of the Board at which such contract or arrangement is taken consideration. A general notice given to the Board by a Director to the effect that he is a Director or member of a particular Company or firm and is to be regarded as concerned or interested in the contract or

arrangement shall be deemed to be sufficient disclosure. But if any such notice expires at the end of the financial year in which it is given and may be renewed for further period of one financial year, by a fresh notice given in the last month of the financial year in which it could otherwise expire.

27. (a) No director shall be disqualified from his office by reason of his contracting with the Company either as a vendor, purchaser, or otherwise, nor shall any contract or arrangement entered into by or on behalf of the company in which any Director shall be in any way interested, be avoided, nor shall any director be liable to account for the Company any profit realised by any such contractor arrangement by reason only of such director holding that office or the fiduciary relation in the very establishment but it is necessary that the nature of his interest must be disclosed by him at the meeting of the directors at which the contract or arrangements is determined or, if he is interested a General notice that a Director is a member of any specified firm or a member of the Board of Directors of any specified Company, and is to be regarded as interested in all transactions with that firm or company shall be sufficient disclosure under this clause as regards such Director and the transaction and after such general notice it shall not be necessary for such Director to give a special notice relating to any particular transaction with that firm or company.
28. A Director may vote in respect of any contract or arrangement in which he is interested.
29. The directors may meet together for the despatch of business, adjourn and otherwise regulate their meetings as they fit and determine the quorum necessary for the transaction of business. Questions arising at any Board Meeting shall have a second casting vote. A meeting of the Directors shall be held at least once three calendar months.
30. The quorum for all the Board meetings shall be one-third of the total strength (any fraction contained in that one-third being rounded off as one) or two Directors whichever is higher.
31. (a) Notwithstanding to the contrary in these presents any Directors shall, as a Director, be entitled to take any part in the discussion of, and vote on, any contract or arrangement entered into, or to be entered into, by or on behalf of the Company, in spite of his being in any way, whether directly or indirectly concerned or interested in any such contract or arrangement and his presence shall count for the purpose of forming a quorum at the time of any such discussion or vote and if time of any such discussion or vote and if he does vote, his vote shall be valid and effective for all purposes and in all respects.
- (b) The meeting of the Board may be convened at such time and at such place

as may be reasonably convenient, preference being given to the Registered Office of the Company. The meeting of the Board if requisitioned shall be held only at the Registered Office of the Company.

32. The Board of Directors may from time to time appoint one or more of their body to be a Managing Director or Wholetime Directors of the Company either for a fixed term or without any limitation as to the period from which he/she or they is or are to hold such office, in terms and conditions as they deem fit and delegate such power to him or them as they deem proper and may from time to time remove or dismiss him or them from office and appoint another or other in his or their place or places. The whether by way of salary or commission or by conferring a right a participate in the profits of the Company or by a combination of both.
33. The Directors may from time to time raise or borrow any sum of money for and on behalf of the Company from the member of other persons, companies or banks, financial institutions, etc., or any of the Directors may himself advance money to the company on such interest as may be approved by the Directors.
34. The Directors may from time to time secure the payment in such loans and upon such terms and conditions in any respects as may think fit in the overall interest of the Company and in particular by the issue of debentures or bonds of the Company or by mortgage or charge or all or any part of the property of the Company and of its uncalled for the time being.
35.
 - (a) So long as any money be owning by the Company to any Finance Corporation or to any Financial Company or Body (which Corporation or body is hereinafter in these Articles is referred to as "The Corporation") the Directors may authorise such Corporation to appoint from time to time any person or persons as a Director or Directors of the company (which Director shall not be liable to retire be rotation and need not possess any qualification shares to qualify him for the office of such Director.
 - (b) The corporation may at any time and from time to time remove any such Corporation Director appointed by it and may at the time of such removal of and also in the case of death or resignation of the person appointed, at any appointed any other person as a Corporation director in his place. Such appointment or removal shall be made in writing signed by the Chairman of the Corporation Directors thereof and shall be delivered to the Company at its registered office.

MANAGING DIRECTOR

36. A Manager or Secretary may be appointed by the Board for such terms, at such remuneration and upon such conditions as it may think and any manager or a secretary so appointed may be removed by the Board. A Director may be appointed manager or secretary.

THE SEAL

37. The company shall have common seal; and the Board shall provide for the safe custody thereof. The seal shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf and in the presence of two Directors or such other person as the Board may appoint for the purpose and such Director or other person aforesaid shall sign every instrument to which the seal of the Company is so affixed in his presence.

RESERVE AND DIVIDEND

38. The Company in General Meeting may declare dividend but no dividend shall exceed the amount recommended by the Board.
39. The Board may from time to time, as it thinks fit, before recommending any dividend set aside out of the profit of the Company, for liquidation of any debentures, debts or other liabilities of the Company for equalisation or Dividend or Company and other purposes of the Company as the Board in its absolute discretion thinks conducive to the interest of the Company and may invest the several sums so set aside upon such investment (other than shares of the Company) as it thinks fit and from time to time deal with and vary such investments and dispose of all or any part thereof for the benefit of the Company, and may divide the Reserve into such special accounts as it thinks fit with full powers to employ the Reserve or any part thereof in the business of the Company and that without being bound to keep the same separate from the other assets.

CAPITALISATION

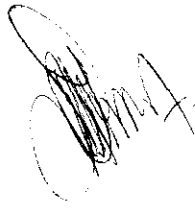
- (a) Any general meeting may upon the recommendation of the Directors resolve that any moneys, investments or other assets forming part of the undivided profit of the Company standing to the credit of any of the Company's reserve funds or the credit of the profits and loss account or any capital redemption reserves fund or in the hands of the company reserves fund or in the hands of the company reserves fund or in the company and available for dividends or representing premium revived on the issue of shares and standing to the credit of the share premium account be capitalised and determined amongst such of the share holders as would be entitled to receive the same if distributed by way of dividend and in the same proportion on the footing that they become entitled thereto as Capital and that all or any part of such capitalised funds shall be applied subject to the provisions contained in clause (b) hereof on behalf of such share holder in full in or towards:
- (i) Pay either at par or at such premium as the Resolution may provide and unissued shares or debentures or debenture-stock or the Company which shall be allotted and distributed, credited as fully paid up to and amongst such members in proportions aforesaid; or

- (ii) Paying up any amount due for the time being remaining unpaid paid on any shares or debentures or debenture-stock held by such members respectively; or
 - (iii) Paying up partly in the way specified in sub-clause (ii) and that such distribution or payment shall be accepted by such shareholders in full satisfaction paying up partly in that specified in sub-clause (i) and partly in that specified in sub-clause (ii) and that such distribution or payment shall be accepted by such shareholders in full satisfaction of their interest in the said capitalised sum.
 - (b)
 - (i) Any money investments or assets representing premium received on the issue of shares and standing to the credit of shares premium account; and
 - (ii) If the Company shall have redeemed any redeemable preference shares, all or any part of any capital redemption fund arising from the redemption of such shares may, by resolution of the company be applied up unissued shares of the Company as to be issued to members of the Company as fully paid bonus shares.
 - (c) Any General Meeting may resolve that any surplus moneys arising from the realisation of any capital assets of the company or any investments representing the sums or any other in distributed profits of the Company not subject to charge for income-tax be distributed among members on the footing that they received the same as capital.
42. If the Company shall be wound up whether voluntarily or otherwise the liquidators may with the sanction required by the act, dividend among the members in specie or kind any part of the assets of the Company and may with the like sanction vest any part of the Assets of the Company in trustees upon such trust for the benefit of the members of any of them as the liquidator with like sanction shall think fit.

INDEMNITY

43. Subject to sanction 201 every officer or agent for the time being of the Company shall be indemnified out of the assets of the Company against any liability incurred by him in defending any proceedings, whether civil or criminal in which judgement is given in his favour or in which he is acquitted or in the connection with any application under Sanction 633 in which relief is granted to him by the Court.

We, the several persons whose names and addresses are subscribed are desirous of being formed into a Company in pursuance of this Articles of Association.

Name, Address, Occupation and description of Subscribers	Signature	Signature, Name, Address Occupation, description & occupation of witness Subscribers
Balbir Singh S/o S. Britam Singh Renu 286 Wardhaman Nagar Nagpur 8 occ: Business. TEJINDER SINGH RENU S/o BALBIR SINGH RENU 286, WARDHAMAN NAGAR. NAGPUR- 440008 Occupation: Business.	 	WITNESS TO BOTH Harish HARISH BHONESA S/O DAMODAR BHONESA 'SATPRATAP', 2, BECONGATH KAMPTAB ROAD NAGPUR- 440 004 OCC: CHARTERED ACCOUNTANT

Place : NAGPUR

DATED : 19-12-95